

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 16, 2026

8:30 a.m./1:30 p.m.

3. LORA GERY V. GARY GERY

24FL1297

On August 22, 2025, Respondent filed a Request for Order (RFO) seeking to compel discovery responses and bifurcation of the issue of date of separation. The RFO and a blank FL-320 were both served on August 25th, however the Notice of Tentative Ruling was not served.

Petitioner has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Petitioner. She had notice of the pending requests and chose not to file an opposition. As such, the court finds good cause to treat her failure to do so as an admission that the claims made in the RFO are meritorious.

Respondent asks that the court set a trial date to determine the date of separation. He also asks for an order compelling Petitioner to provide further responses to Respondent’s Request for Production of Documents – By Respondent to Petitioner, Set No. 1 and sanctions in the amount of \$4,334.

Regarding the discovery motion, each party is permitted to use multiple methods of obtaining discovery to obtain information needed to prepare one’s case. Among the authorized forms of discovery is a request for the production of documents and other tangible things. “A party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following:” (1) a statement that the party will comply, (2) a statement that the party lacks the ability to comply, or (3) an objection to the demand or request made. Cal. Civ. Pro. §2031.210.

After reviewing Respondent’s moving papers and the responses and amended Responses of Petitioner to the discovery requests, the court does find that the amended responses do not strictly comply with the Civil Discovery Act. Therefore, Respondent’s motion to compel is granted. Petitioner is ordered to serve further verified written responses with any non-privileged documents not previously produced to Respondent’s Request for Production of Documents – By Respondent to Petitioner, Set No. 1.

Sanctions are mandatory for one who “unsuccessfully *makes or opposes* a motion to compel a response...unless [the court] finds that one subject to the sanction acted with

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substantial justification or that other circumstances make the imposition of the sanction unjust” Cal. Civ. Pro. § 2031.300(c). In all other circumstances, the imposition of discovery sanctions is permissive. See Cal. Civ. Pro. § 2023.030 (the court *may* impose monetary sanctions for misuse of the discovery process). Conduct subject to discretionary sanctions includes, but is not limited to, “[m]aking an evasive response to discovery.” Cal. Civ. Pro. § 2023.010(f).

Where sanctions are awarded, the amount imposed is to include “...the reasonable expenses, including attorney’s fees, incurred by anyone as a result of...” the conduct of the party subject to sanction. Cal. Civ. Pro. 2023.030(a) & 2023.020. A party requesting sanctions must establish that the amount requested is reasonable, was incurred as a result of discovery abuse, and the requesting party must already be liable for those expenses before the court can award the costs as sanctions. See *Tucker v. Pacific Bell Mobile Servs.*, 186 Cal. App. 4th 1548 (2010) (anticipated costs for future deposition could not be included in award of sanctions). Notwithstanding the foregoing, the court is obligated to “...impose a one-thousand-dollar (\$1,000) sanction, payable to the requesting party...” if the court finds that the noncompliant party did not respond in good faith to a request for production of documents, or failed to make a reasonable good faith attempt to informally resolve a discovery dispute. Cal. Civ. Pro. § 2023.050(a).

Here, while Petitioner did not oppose the motion, her responses were not entirely code compliant. Namely due to the use of the phrase “the production was allowed in whole” instead of affirming that “all documents...will be included in the production.” It does appear from the amended responses that she did produce the majority of the requested documents and the court does not find that she acted in bad faith. As such, the court is not ordering sanctions pursuant to Civil Procedure Section 2023.050(a). And, while the court finds that sanctions may be warranted pursuant to § 2031.300(c), the court is concerned with Petitioner’s inability to pay which would make awarding the entire amount of sanctions unjust. Petitioner is therefore, sanctioned \$1,000. This amount is to be paid directly to Respondent’s attorney and may be paid in one lump sum or in monthly increments of \$100 commencing on May 1, 2026, and continuing on the 1st of each month until paid in full (approximately 10 months). If any payment is missed or late, the entire amount shall become immediately due and payable.

The parties are ordered to appear to select a trial date on the issue of the date of separation.

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

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Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #3: THE PARTIES ARE ORDERED TO APPEAR TO SELECT A TRIAL DATE ON THE ISSUE OF THE DATE OF SEPARATION.

RESPONDENT'S MOTION TO COMPEL IS GRANTED. PETITIONER IS ORDERED TO SERVE FURTHER VERIFIED WRITTEN RESPONSES WITH ANY NON-PRIVILEGED DOCUMENTS NOT PREVIOUSLY PRODUCED TO RESPONDENT'S REQUEST FOR PRODUCTION OF DOCUMENTS – BY RESPONDENT TO PETITIONER, SET NO. 1.

PETITIONER IS SANCTIONED \$1,000. THIS AMOUNT IS TO BE PAID DIRECTLY TO RESPONDENT'S ATTORNEY AND MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$100 COMMENCING ON MAY 1, 2026, AND CONTINUING ON THE 1ST OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY 10 MONTHS). IF ANY PAYMENT IS MISSED OR LATE, THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.